

SCHEDULE.

Section 1.

ENACTMENTS WHICH MAY BE EXTENDED.

Session and Chapter.	Title.	Enactments which may be extended by Order in Council.
32 & 33 Vict. c. 10.	The Colonial Prisoners Removal Act, 1869.	The whole Act.
55 & 56 Vict. c. 6.	The Colonial Probates Act, 1892.	The whole Act.
57 & 58 Vict. c. 30.	The Finance Act, 1894 - -	Section twenty.
63 & 64 Vict. c. 14.	The Colonial Solicitors Act, 1900.	The whole Act.
8 Edw. 7. c. 69.	The Companies (Consolidation) Act, 1908.	Sections thirty-four, thirty-five, and thirty-six.

CHAPTER 17.

An Act to prevent the Misdescription of Fabrics.

[15th August 1913.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1. It shall not be lawful for any person to sell, or expose, or have in his possession for sale, any textile fabric either in the piece, or made up into garments, or in any other form, to which is attributed expressly or inferentially the quality of non-inflammability, or safety from fire, or any degree of such quality of non-inflammability or safety from fire—

Prohibition of sale with misleading description as to inflammability.

(1) by wording or marking, descriptive or otherwise—

- (a) upon the material; or
- (b) upon any wrapper or band; or
- (c) contained in any letterpress or writing referring to the material; or

(2) by verbal representation at the time of sale;

unless such textile fabric conforms to such standard of non-inflammability as may be prescribed by regulations to be made by the Secretary of State, and, if any person sells, or has in his

possession, textile fabric in contravention of this Act, he shall be liable on summary conviction to a fine not exceeding, in the case of a first offence, ten pounds, or, in the case of a second or subsequent offence, fifty pounds.

Power of
Secretary of
State to make
regulations.
56 & 57 Vict.
c. 66.

2. All regulations made by the Secretary of State under this Act shall be laid before Parliament as soon as may be after they are made, and the Rules Publication Act, 1893, shall apply to such regulations as if they were statutory rules within the meaning of section one of that Act.

Cases where
vendors pur-
chase under
warranty.

3. Where in any proceedings against a person charged with an offence under this Act, it is proved that an offence under this Act has been committed, but that the person charged with the offence—

- (a) purchased the textile fabric in respect of which the offence was committed from a person resident within the United Kingdom who sold the textile fabric under a warranty that it complied with the prescribed standard of non-inflammability; and
- (b) took reasonable steps to ascertain, and did in fact believe in the accuracy of the statement contained in the warranty;

the person so charged shall be entitled upon an information duly laid by him to have the person who gave the warranty brought before the court, and that person may be summarily convicted of the offence, and the person originally charged shall be exempt from any fine, and the person so convicted shall, in the discretion of the court, also be liable to pay any costs incidental to the proceedings.

Material found
in possession
deemed to be
for sale.

4. Where a person is charged with having textile fabric in his possession in contravention of this Act, any such material proved in the proceedings to have been found in his possession shall be deemed to be intended for sale as aforesaid unless the contrary is proved.

Powers and
duties of local
authorities.

5.—(1) It shall be the duty of every local authority to enforce the provisions of this Act within their district, and for that purpose any male or female person or officer whom the local authority may appoint shall have power, if so authorised by the local authority, to institute and carry on any proceedings which the local authority is authorised to institute and carry on under this Act.

(2) In this Act the expression “local authority” means—

- as respects the City of London, the common council;
- as respects any municipal borough, the council of the borough;
- as respects any urban district, the district council;
- elsewhere, the county council: •

Provided that the London County Council may, with the approval of the Secretary of State, make arrangements with

the council of any metropolitan borough for the exercise by the metropolitan borough as agents for the London County Council, on such terms and subject to such conditions as may be agreed on, of any powers of the London County Council under this Act within the district of the metropolitan borough, and the council of the metropolitan borough may, as part of the agreement, undertake to pay the whole or any part of the expense incurred in connection with the exercise of the powers delegated to them.

(3) The expenses of a local authority under this Act shall be defrayed,—

- in the case of the common council of the city of London, out of the general rate ;
- in the case of the council of a borough, out of the borough fund or borough rate ;
- in the case of a district council, as part of the general expenses incurred in the execution of the Public Health Acts ;
- in the case of a county council, as expenses for special county purposes ;
- in the case of a metropolitan borough council, as part of the expenses of the council.

6. All fines imposed in any proceedings instituted by a local authority in pursuance of their powers and duties under this Act shall be paid to the local authority and carried to the credit of the fund out of which the expenses incurred by the authority under this Act are defrayed.

Fines imposed to be paid to local authorities.

7. This Act shall apply to Scotland, subject to the following modifications :—

Application to Scotland.

- (1) The Secretary for Scotland shall be substituted for the Secretary of State :
- (2) The local authority, for the purposes of this Act, shall be the county council in a county (exclusive of the police burgh therein) and the town council in a royal, parliamentary, or police burgh :
- (3) The expenses of a local authority under this Act shall be defrayed, in the case of a county council, out of the general purposes rate, and, in the case of a town council, out of the burgh general improvement assessment or any other assessment leviable by the town council in equal proportions on owners and occupiers :

Provided that the ratepayers of a police burgh shall not be assessed by the county council for any such expenses.

Application
to Ireland.

8. This Act shall apply to Ireland, subject to the following modifications :—

- (1) The Lord Lieutenant shall be substituted for the Secretary of State :
- (2) A local authority, for the purposes of this Act, means, as respects any municipal borough, the borough council, and as respects any urban district the district council, and those authorities shall, as respects their several areas, be the local authorities for the purposes of this Act :
- (3) The expenses of such local authorities shall be defrayed, in the case of a municipal borough, out of the borough fund or borough rate, in the case of a district council as part of the general expenses incurred in the execution of the Public Health (Ireland) Acts, 1878 to 1907.

Short title and
commence-
ment of Act.

9. This Act may be cited as the *Fabrics (Misdescription) Act, 1913*, and shall come into operation on the first day of January nineteen hundred and fourteen.

CHAPTER 18.

An Act to amend the Law with respect to Customs in the
Isle of Man. [15th August 1913.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Continuance of
additional
duties on tea,
tobacco,
spirits, ale,
and beer.
6 Edw. 7. c. 18.
63 & 64 Vict.
c. 31.

1. The additional duty of Customs on tea removed or imported into the Isle of Man imposed by section one of the Isle of Man (Customs) Act, 1906, and the additional duties of Customs on tobacco and spirits removed or imported into the Isle of Man imposed by section one of the Isle of Man (Customs) Act, 1900, and the additional duty on ale and beer removed or imported into the Isle of Man imposed by the second paragraph of section two of that Act, shall continue to be charged, levied, and paid as from the first day of August nineteen hundred and thirteen until the first day of August nineteen hundred and fourteen.

Short title.

2. This Act may be cited as the *Isle of Man (Customs) Act, 1913*.